



File No.: EXP202307857

RESOLUTION OF

PROCEEDING OF WARNING

Of the proceeding initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On June 4, 2023, a complaint was filed with the Spanish Agency for Data Protection. The complaint is directed against A.A.A. with NIF ***NIF.1 (*hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant states that he is a neighbor of the complained party and that this party has surveillance cameras in their home that, due to their location and orientation, are capable of capturing images of the complainant's property, which is adjacent to that of the complained party.

Images of the location of the complained cameras are provided (Annex I Frames 1-4).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: Upon consulting the database of this agency, it is noted that the appropriate transfer of the subject to the complaint was made on 08/06/23 and reiterated on 18/08/23 in accordance with the provisions of the Common Administrative Procedure Law of Public Administrations, being recorded as at the address indicated by the Official Postal and Telegraph Service.

In the acknowledgment of receipt sent by the aforementioned Official Postal Service, it is noted that A.A.A., with ID document DNI ***NIF.1, received it in due time and form.

FOURTH: On September 4, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FIFTH: On January 28, 2025, the Presidency of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the complained party for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

SIXTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was collected in due time and form as evidenced by the acknowledgment of receipt in the file.

SEVENTH: Once the deadline for submitting allegations had elapsed, it has been confirmed that no allegations have been received from the complained party.

In light of all that has transpired, the Spanish Agency for Data Protection considers the following to be proven facts in this proceeding,

PROVEN FACTS

First. The facts were transferred to this agency due to the installation of surveillance cameras, which directly affect the complainant's private property.

The evidence provided allows for the confirmation of the presence of cameras that may exceed the scope of private use (Annex I).

Second. A.A.A. with NIF ***NIF.1 is accredited as the main responsible party for the installation.

Third. The installation of a surveillance system has been accredited, the characteristics of which have not been clarified by the complained party and whose poor orientation is evident.

Fourth. It is accredited that the documents are delivered to the following address ***ADDRESS.1 as certified by the Official Postal Service.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this proceeding.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation not fulfilled.

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In the present case, we proceed to examine the claim dated 04/06/23 through which the presence of "devices" for capturing images is reported, which, according to the claimant, affect their personal privacy.

In support of their claim, they provide documentary evidence, where two devices installed on the property of the respondent can be observed, without being able to determine their precise angle of orientation.

Article 5.1 c) of the GDPR states the following: Personal data shall be:

"adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

According to the Supreme Court—Civil Chamber, Section 1, November 7, 2019 (No. 600/2019)—in accordance with the doctrine of the Constitutional Court, it recalls that "the constitutionality of any measure restricting fundamental rights is determined by the strict observance of the principle of proportionality."

Article 22, section 1 of Organic Law 3/2018, December 5 (LOPDGDD) states:

Natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of persons and property, as well as their facilities.

Video surveillance systems must be primarily oriented towards private property, and must, as far as possible, avoid capturing public space and/or private space of third parties.

III

Classification and qualification of the infringement

In accordance with the available in the present warning procedure, it is considered that the respondent has a video surveillance system that affects the adjacent private property, without any explanation having been provided to this agency regarding the legality of the system.

The set of circumstantial evidence determines the presence and operability of the devices, as well as the evident poor orientation towards the claimant's property, which, in the opinion of this agency, determines the capture of personal data without justified cause from the adjacent property, without any response having been provided throughout the various requests made (Supreme Court—Criminal Chamber—November 4, 2019, No. Rec. 10207/2019 criteria).

The known facts constitute an infringement, attributable to the respondent for the alleged violation of

Article 5.1 c) of the GDPR, transcribed in the previous section.

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Article 72, section 1 of the LOPDGDD (Organic Law 3/2018, December 5) regarding the statute of limitations for very serious infringements states that “they shall prescribe after three years” and in particular the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

IV

Article 71 of Organic Law 3/2018 (Organic Law 3/2018, December 5) states:

“Acts and behaviors referred to in sections 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

Article 83.5 of the GDPR states: “Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to up to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9;

V

Without prejudice to the provisions of paragraph 83 of the GDPR, the aforementioned Regulation states in paragraph 2.b) of Article 58 “Powers” the following:

“Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation; (...)”

Furthermore, Article 64 of the LOPDGDD, which regulates the “Initiation of the procedure and duration,” in its third section states that:

“3. When appropriate, taking into account the nature of the facts and duly considering the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Data Protection Agency, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified timeframe.

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The procedure shall have a maximum duration of six months from the date of the initiation agreement. Upon the expiration of this period, it will lapse, and consequently, the file will be archived. The provisions of the second and third paragraphs of section 2 of this article shall apply in this case.

VI

Adoption of measures

The text of the resolution establishes what the infringements committed were and the facts that led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

Among the measures to be adopted, in this case, the reorientation and/or removal of the device(s) to private property is ordered, thereby avoiding intimidation to the complaining party.

It is warned that failure to comply with the possible order to adopt measures imposed by this body in the resolution of this procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ISSUE A WARNING to A.A.A., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO ORDER A.A.A., with NIF ***NIF.1, pursuant to Article 58.2.d) of the GDPR, within 1 MONTH from the date this resolution becomes final and enforceable, to prove compliance with the following measure:

- Prove the removal and/or reinstallation of the cameras in dispute between the parties, in such a way that they only capture their exclusive private property, providing photographs with date and time.

THIRD: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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